

(2001) 94 Cal.App.4th 540 and *Hearn v. Howard* (2009) 177 Cal.App.4th 1193. Notably, those cases both dealt with service at private post office box rental stores, not service at a former address. However, the relationship that can be inferred here is sufficiently similar because the person residing in the home owned by defendants had a duty to forward mail, particularly if they did not notify the post office of any change.

The declaration of Rebecca Davis states, “we have a friend living at the property.” (Declaration of Rebecca Davis in Support of Motion, ¶15.) Neither Rebecca Davis nor Matthew Davis deny that the friend is the person who received the papers, that defendants “still get mail” at the Minert Road address, or that they the friend did, in fact, forward the papers to them. Neither defendant submits any evidence of having changed their mailing address with the United States Postal Service.

Pursuant to these facts, plaintiff has shown defendants were served at their “usual mailing address” for purposes of section 415.20, subdivision (b). However, the evidence does not indicate reasonable diligence was employed to first attempt to “personally deliver” the summons and complaint. (Code Civ. Proc., § 415.20 (b).) Because such reasonable diligence was required as a condition to substitute service, the motion is granted.

**15. 9:00 AM CASE NUMBER: C25-03424**  
**CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: CHEVRON U.S.A. INC**  
**\*TENTATIVE RULING:\***

Hearing vacated by stipulation of the parties.

**16. 9:00 AM CASE NUMBER: C25-03424**  
**CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC**  
**MOTION TO STRIKE PORTIONS OF PLTFs COMPLAINT**  
**FILED BY: CHEVRON U.S.A. INC**  
**\*TENTATIVE RULING:\***

Hearing vacated by stipulation of the parties.

**17. 9:00 AM CASE NUMBER: C25-03480**  
**CASE NAME: ANNA ROWE VS. LYNN SHAFER**  
**\*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES**  
**FILED BY: SHAFER, LYNN FREDERICK**  
**\*TENTATIVE RULING:\***

Unopposed –granted.

18. 9:00 AM CASE NUMBER: C25-03518  
CASE NAME: AGUSTIN ARGENAL VS. KIA AMERICA, INC.  
HEARING ON DEMURRER TO: COMPLAINT  
FILED BY: KIA AMERICA, INC.

**\*TENTATIVE RULING:\***

Defendant Kia America, Inc.'s Demurrer to Plaintiff Agustin Argenal's Complaint is **sustained with leave to amend**. Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall file and serve a first amended complaint within 20 days of notice of entry of this order.

**Background**

On December 2, 2025, Plaintiff Agustin Argenal filed this Lemon Law action against Kia America, Inc. and Does 1 to 10. (Complaint, ¶ 2.) The Complaint alleges Plaintiff purchased a new 2025 Kia Carnival Hybrid, VIN: KNDNC5KA7S6034839 ("Vehicle") on or about June 3, 2025. (¶ 4.) Defendant offered an express warranty to Plaintiff regarding the Vehicle. (¶ 8.) The sale of the Vehicle was also accompanied by an implied warranty of merchantability and an implied warranty of fitness. (¶ 9.) Defendant is a manufacturer and/or distributor of the Vehicle. (¶ 7.) The Complaint alleges the Vehicle manifested defects and nonconformities, including failure of its battery and/or charging system, within the applicable express warranty period. (¶ 10.) When Plaintiff delivered the Vehicle to an authorized Kia America, Inc. service and repair facility on numerous occasions for repair, Defendant was allegedly unable to conform the Vehicle to the applicable express and implied warranties after a reasonable number of attempts. (¶¶ 11-12.) Defendant subsequently failed to repurchase the Vehicle and make restitution. (¶ 13.) The Complaint alleges a violation of the Song-Beverly Consumer Warranty Act, Civil Code sections 1790 et seq., "the Act." (¶ 5.)

On February 6, 2026, Defendant filed a demurrer to the complaint for failure to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e). Defendant argues that the Act does not apply because the Vehicle was purchased from an Oregon dealership, and title passed outside of California as a matter of law, which precludes Plaintiff from stating a claim under the Act. Defendant's demurrer is accompanied by a Request for Judicial Notice of the "Retail Buyer's Order," which Defendant argues shows an Oregon purchase with Oregon title and registration processing and no contractual requirement of delivery in California.

On May 26, 2026, Plaintiff filed an opposition. Plaintiff argues that the complaint adequately alleges all elements of a cause of action under Civil Code section 1793.2(d)(2), and that because the Act applies only to California-purchased vehicles, the allegations that the Vehicle is subject to the Act reasonably imply a California sale location. (See, e.g., Complaint ¶¶ 5-8; 13-15.) Plaintiff asserts that the Retail Buyer's Order is not the proper subject of judicial notice under Evidence Code section 452(h) because it was not referenced in the complaint and cannot be used to resolve disputed factual issues. In the alternative, Plaintiff requests leave to amend the complaint to allege that the seller delivered the Vehicle to Plaintiff in California.

On June 3, 2026, Defendant filed a reply. Defendant argues that Plaintiff's reliance on defined terms under the Act constitutes a legal conclusion the Court need not accept as true at the pleading stage,

and further argues that Plaintiff's allegation of a purchase date is sufficient to invoke the incorporation by reference doctrine and permit the Court to take judicial notice of the Retail Buyer's Order. Defendant argues that even if Plaintiff is given leave to amend, adding an allegation that the Vehicle was delivered in California would not cure the pleading defect because delivery alone does not establish a destination contract under the Commercial Code. Defendant's reply raises the new argument that the Retail Buyer's Order contains an integration clause that supersedes all prior or contemporaneous agreements, thereby precluding Plaintiff from alleging any separate delivery agreement inconsistent with the written terms of the Retail Buyer's Order. Defendant states that the Retail Buyer's Order lists a California address for Plaintiff, which it redacted solely to protect Plaintiff's privacy.

### **Legal Standard**

A demurrer for sufficiency tests whether the complaint states facts sufficient to state a cause of action. (Code of Civ. Proc. § 430.10(e); *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

### **Discussion**

#### **Meet and Confer**

Code of Civil Procedure section 430.41 requires that before filing a demurrer, the demurring party must meet and confer with the party who filed the pleading, in person or by telephone, at least five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a).) When the demurrer is filed, it must be accompanied by a declaration stating either that the meet and confer was completed and describing the means by which it occurred, or that the party who filed the pleading failed to respond to the meet and confer request or was unwilling to participate in the process. (Code Civ. Proc. § 430.41(a)(3).)

On January 7, 2026, the date the responsive pleading was due, Defendant filed a declaration under section 430.41(a)(2) stating that it had sent a meet and confer letter to Plaintiff, had not received a response, and was therefore requesting a thirty-day extension to allow that process to occur. Defendant filed its demurrer thirty days later on February 6, 2026, without any declaration explaining whether the parties ever spoke and whether potential amendments were discussed. As a result, the Court has no information regarding whether a meet and confer actually took place.

The Court will nonetheless proceed to the merits of the demurrer. (Code Civ. Proc. § 430.41(a)(4).)

#### **The Complaint Does Not Allege Facts Sufficient to Establish a California Sale**

The Song-Beverly Consumer Warranty Act grants new car buyers the right to sue when a manufacturer or retail seller fails to comply with any implied or express warranty. (Civ. Code § 1794, subd. (a).) Importantly for this case, the Song-Beverly Act applies only to vehicles sold in California. (*Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 493.) The Song-Beverly Act is intended to supplement the provisions of the California Uniform Commercial Code, "and thus provisions of the

California Uniform Commercial Code governing sales properly attach to those of the [Song-Beverly Act]." (*Calif. State Electronics Assn. v. Zeos Internat. Ltd.* (1996) 41 Cal. App. 4th 1270, 1276.) Under the California Uniform Commercial Code and the Song-Beverly Act, a "sale" is defined as a passage of title from seller to buyer for a price. (*Id.*; and see Civil Code section 1791(n)(1).) "Section 2401 of the California Uniform Commercial Code governs when and where title passes between seller and buyer." (*Id.*)

While Plaintiff argues that the Vehicle was sold in California such that the Song-Beverly Act applies, the complaint is devoid of factual allegations supporting that conclusion. Plaintiff alleges that he is a "buyer" under the Act, that the Vehicle is a "new motor vehicle" under the Act, and that Defendant is a "manufacturer" under the Act. The Court cannot infer from the mere invocation of defined terms under the Act that the sale occurred in California.

Leave to amend is warranted. Plaintiff has represented that he can allege facts showing the Vehicle was delivered in California. Defendant argues that alleging delivery alone would not cure the defect because delivery alone does not establish a destination contract under Commercial Code section 2401. That may be true as far as it goes. But the Court does not know what specific facts Plaintiff intends to allege. Plaintiff may be able to allege facts going beyond mere delivery bearing on whether title passed in California. The Court find that the better course is to allow the amendment and evaluate the sufficiency of Plaintiff's allegations against Kia once they are before the Court.

#### **Disposition**

For the foregoing reasons, Defendant's Demurrer to the Complaint is **sustained with leave to amend.**

Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall file and serve a first amended complaint within 20 days of notice of entry of this order.

**19. 9:00 AM CASE NUMBER: MSC16-01426**  
**CASE NAME: RICHMOND COMPASSIONATE VS RICH PAT GROUP**  
**\*HEARING ON MOTION IN RE: ORDER AUTHORIZING DIRECT SALE OF RECEIVERSHIP COLLATERAL**  
**FILED BY: RICHMOND COMPASSIONATE CARE COLLECTIVE A CALIFORNIA CORPORATION**  
**\*TENTATIVE RULING:\***

Plaintiff Richmond Compassionate Care Collective's motion authorizing direct sale of receivership collateral to receiver is **denied**.

The Receiver Garib Karapentyan of Capitol Compliance Management was appointed as successor receiver over some of the Defendants' businesses. The receiver is seeking an order authorizing the transfer of the Defendants' businesses currently collateral in the receivership directly to Capitol Compliance Management. In exchange, the receiver proposes to extinguish his claims for all accrued and unpaid receiver compensation and the receiver's certificate no. 2. The receiver's certificate no.1 to Andrew Provencio shall remain in effect. The receiver proposes that the attorney fee lien for \$5,000,000 held by the Plaintiff and any outstanding tax obligations shall be preserved. The Receiver proposes to extinguish all other claims against the collateral.

The Receiver is an interested party and an owner of the Plaintiff. The Court previously